

INDEPENDENT CONTRACTOR AGREEMENT

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This Agreement is entered into as of **1 June 2025** (“Effective Date”) between the parties identified below.

CLIENT: NovaBridge GmbH, a company incorporated under German law, registered at Amtsgericht München, HRB 247581, with principal offices at Leopoldstrasse 48, 80802 München, Germany (“Client”).

CONTRACTOR: The individual or sole-trader entity identified in Schedule A (“Contractor”).

1. ENGAGEMENT & SERVICES

1.1 Client hereby engages Contractor, and Contractor agrees to perform, the services described in Schedule A (the “Services”) on a project-by-project basis as mutually agreed in writing via Statements of Work (“SOW”).

1.2 Each SOW shall specify the scope, deliverables, timeline, and applicable fees. In the event of conflict between this Agreement and a SOW, this Agreement shall prevail unless the SOW expressly states otherwise.

1.3 Contractor represents that it has the skills, experience, and authority to perform the Services and shall perform them in a professional and workmanlike manner consistent with industry standards.

2. TERM & TERMINATION

2.1 Initial Term. This Agreement commences on the Effective Date and continues for twelve (12) months (“Initial Term”).

2.2 Automatic Renewal. Upon expiry of the Initial Term and each subsequent renewal term, this Agreement shall automatically renew for successive twelve (12)-month periods unless either party

provides written notice of non-renewal at least **ninety (90) days** before the end of the then-current term.

2.3 Termination for Convenience. Client may terminate any SOW or this Agreement for convenience upon **thirty (30) days** written notice. Contractor may terminate upon **sixty (60) days** written notice.

2.4 Termination for Cause. Either party may terminate immediately upon written notice if the other party materially breaches this Agreement and fails to cure such breach within **ten (10) business days** of written notice.

2.5 Effect of Termination. Upon termination, Contractor shall cease all Services, return or destroy all Client Confidential Information, and deliver all work-in-progress. Client shall pay for all Services performed up to the termination date; however, where Client terminates for convenience, **no kill fee or compensation beyond hours actually logged shall be payable.**

3. COMPENSATION & PAYMENT

3.1 Fees. Contractor shall be compensated at the rates set out in the applicable SOW. Rates are exclusive of VAT, which shall be added where applicable.

3.2 Invoicing. Contractor shall submit invoices no more frequently than twice per calendar month. Each invoice must include: Contractor's name, address, tax identification number, itemised description of Services rendered, hours worked (if applicable), and applicable SOW reference.

3.3 Payment Terms. Client shall pay undisputed invoices within **forty-five (45) calendar days** of receipt. Invoices not disputed within **ten (10) business days** of receipt are deemed accepted.

3.4 Late Payment. Overdue amounts shall accrue interest at a rate of **1% per month** (or the maximum permitted by law, whichever is lower) from the due date until paid in full. Contractor's sole remedy for late payment is such statutory interest; Contractor expressly waives any right to suspend Services for non-payment unless undisputed amounts remain unpaid for more than **ninety (90) days**.

3.5 Expense Reimbursement. Client shall reimburse pre-approved, reasonable, and documented expenses. Expenses exceeding EUR 150 per item require prior written approval. Expense claims must be submitted within **thirty (30) days** of incurral or are deemed waived.

3.6 Rate Adjustment. Client reserves the right to adjust Contractor rates for any renewal term with **thirty (30) days** prior written notice. Contractor's sole remedy for an unacceptable rate adjustment is non-renewal of the Agreement.

4. INDEPENDENT CONTRACTOR STATUS

4.1 Contractor is an independent contractor and not an employee, agent, partner, or joint venturer of Client. Contractor has no authority to bind Client to any agreement or obligation.

4.2 Contractor is solely responsible for all taxes, social security contributions, insurance, and other obligations arising from Contractor's receipt of fees under this Agreement.

4.3 Client shall have no obligation to provide Contractor with equipment, tools, or facilities unless expressly agreed in a SOW.

5. INTELLECTUAL PROPERTY

5.1 Assignment of Work Product. Contractor hereby irrevocably assigns and transfers to Client, for no additional consideration beyond the fees paid under this Agreement, all right, title, and interest – including all intellectual property rights – in and to any and all work product, deliverables, code, designs, inventions, discoveries, improvements, methods, processes, and other materials created, conceived, or developed by Contractor in connection with the Services, whether solely or jointly with others (“Work Product”).

5.2 Pre-Existing IP. Contractor retains ownership of any tools, libraries, frameworks, or methodologies developed independently of the Services and prior to this Agreement (“Pre-Existing IP”), provided that Contractor grants Client a perpetual, irrevocable, royalty-free, worldwide, sublicensable licence to use, modify, and distribute any Pre-Existing IP embedded in or necessary for the use of the Work Product. Contractor must disclose all Pre-Existing IP in writing before commencing any SOW.

5.3 Moral Rights. To the fullest extent permitted by applicable law, Contractor irrevocably waives all moral rights in the Work Product in favour of Client and Client's successors, assigns, and licensees.

5.4 IP in Third-Party Materials. Contractor shall not incorporate any third-party materials (including open-source software) into Work Product without Client's prior written consent and shall ensure that all such materials are appropriately licensed for Client's intended use.

5.5 Further Assurance. Contractor shall, at Client's reasonable request and expense, execute further documents and take such steps as may be reasonably required to perfect Client's ownership of the Work Product.

6. CONFIDENTIALITY

6.1 Definition. “Confidential Information” means all non-public information disclosed by Client to Contractor, whether oral or written, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and circumstances of disclosure, including but not limited to: business strategies, financial data, client lists, technical specifications, and the terms of this Agreement.

6.2 Obligations. Contractor shall: (a) hold all Confidential Information in strict confidence; (b) not disclose Confidential Information to any third party without Client’s prior written consent; (c) use Confidential Information solely for the purpose of performing the Services; and (d) limit access to Confidential Information to those of Contractor’s personnel who have a need to know and are bound by confidentiality obligations at least as protective as those herein.

6.3 Duration. Confidentiality obligations shall survive termination of this Agreement for a period of **five (5) years**, except with respect to trade secrets, which shall remain confidential indefinitely.

6.4 Permitted Disclosure. Contractor may disclose Confidential Information to the extent required by law or court order, provided Contractor gives Client prompt written notice (to the extent permitted by law) and cooperates with Client’s efforts to seek a protective order.

7. NON-COMPETE & NON-SOLICITATION

7.1 Non-Compete. During the term of this Agreement and for a period of **twelve (12) months** following its termination or expiry, Contractor shall not, directly or indirectly, engage in, own, manage, operate, control, be employed by, provide services to, or participate in any business or venture that competes with Client’s current or reasonably anticipated business activities within the **European Union**.

7.2 Non-Solicitation of Clients. During the term and for **twenty-four (24) months** following termination, Contractor shall not solicit, approach, or accept business from any person or entity that was a client or prospective client of Client during the twelve (12) months preceding termination, if such business would compete with Client.

7.3 Non-Solicitation of Personnel. During the term and for **twelve (12) months** following termination, Contractor shall not directly or indirectly solicit, recruit, or hire any employee, contractor, or consultant of Client.

7.4 Acknowledgement. Contractor acknowledges that the restrictions in this Section 7 are reasonable and necessary to protect Client's legitimate business interests. If any restriction is found unenforceable, it shall be modified to the minimum extent necessary to make it enforceable.

8. LIMITATION OF LIABILITY

8.1 Disclaimer. EXCEPT AS EXPRESSLY SET OUT IN THIS AGREEMENT, ALL SERVICES ARE PROVIDED "AS IS". CLIENT MAKES NO WARRANTY AND CONTRACTOR MAKES NO WARRANTY THAT THE SERVICES WILL BE ERROR-FREE OR MEET ANY PARTICULAR STANDARD.

8.2 Cap on Liability. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL NOT EXCEED THE **TOTAL FEES PAID OR PAYABLE BY CLIENT IN THE THREE (3) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.**

8.3 Exclusion of Consequential Damages. NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR DAMAGES FOR LOSS OF PROFITS, REVENUE, GOODWILL, DATA, OR BUSINESS OPPORTUNITY, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

8.4 Exceptions. The limitations in Sections 8.2 and 8.3 shall not apply to: (a) a party's indemnification obligations; (b) breach of confidentiality; (c) infringement of the other party's intellectual property rights; or (d) death or personal injury caused by gross negligence or wilful misconduct.

9. INDEMNIFICATION

9.1 By Contractor. Contractor shall defend, indemnify, and hold harmless Client and its officers, directors, employees, and agents from any claims, damages, losses, costs, and expenses (including reasonable legal fees) arising out of or relating to: (a) Contractor's breach of this Agreement; (b) Contractor's negligence or wilful misconduct; (c) any claim that the Work Product infringes any third-party intellectual property right, where such infringement arose from Contractor's acts or omissions; or (d) Contractor's violation of any applicable law.

9.2 By Client. Client shall defend, indemnify, and hold harmless Contractor from any claims arising out of Client's use of the Work Product in a manner not authorised under this Agreement or in violation of applicable law.

10. DISPUTE RESOLUTION

10.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the **Federal Republic of Germany**, without regard to conflict-of-law principles.

10.2 Jurisdiction. The parties irrevocably submit to the exclusive jurisdiction of the courts of **Munich, Germany** for the resolution of any dispute arising out of or in connection with this Agreement.

10.3 Negotiation. Before initiating formal proceedings, the parties agree to attempt to resolve any dispute through good-faith negotiations for a period of **thirty (30) days** following written notice of the dispute.

10.4 Legal Costs. Each party shall bear its own legal costs in any dispute, except where a court awards costs to a prevailing party.

11. GENERAL PROVISIONS

11.1 Entire Agreement. This Agreement, together with all Schedules and SOWs, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior negotiations, representations, and agreements.

11.2 Amendments. No modification of this Agreement shall be valid unless made in writing and signed by authorised representatives of both parties.

11.3 Assignment. Client may assign this Agreement or any SOW without Contractor's consent to any affiliate or in connection with a merger, acquisition, or sale of assets. Contractor may not assign any rights or obligations under this Agreement without Client's prior written consent.

11.4 Subcontracting. Contractor shall not subcontract any Services without Client's prior written consent. Client's consent shall not be unreasonably withheld. Contractor remains liable for all acts and omissions of approved subcontractors.

11.5 Waiver. No failure or delay by either party in exercising any right under this Agreement shall constitute a waiver of that right.

11.6 Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

11.7 Notices. All notices under this Agreement shall be in writing and delivered by email (with read receipt or delivery confirmation) or courier to the addresses set out in Schedule A.

11.8 Force Majeure. Neither party shall be liable for any failure or delay in performance caused by circumstances beyond its reasonable control, including acts of God, war, pandemic, government action, or internet outages, provided the affected party notifies the other within five (5) business days and uses reasonable efforts to resume performance.

SCHEDULE A – CONTRACTOR DETAILS & INITIAL SOW

- **Contractor Name:** [To be completed]
- **Contractor Address:** [To be completed]
- **Tax ID / VAT Number:** [To be completed]
- **Notice Email:** [To be completed]
- **Initial Services:** Software development and UX design consultancy
- **Day Rate:** EUR 600 per day (8 hours)
- **Estimated Duration:** 3 months (extendable by mutual written agreement)
- **Deliverables:** As specified in individual SOWs issued by Client

SIGNED by the parties on the date(s) indicated below:

FOR NOVABRIDGE GMBH

CONTRACTOR

Signature: _____

Signature: _____

Name: _____

Name: _____

Title: _____

Date: _____

Date: _____